

Tentative Rulings

June 1, 2026

Department S-17

Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, the tentative ruling will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: As of January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

18. *Jefferson v. Warren, et al*, Case No. CIVSB2414011

Defendant County's Motion to Quash Civil Subpoenas for Testimony Served on Opp. Counsel
Defendant County's Motion for Issuance of Protective Order Prohibiting Exam of Opp. Counsel
6/1/26, 9:00 a.m., Dept. S-17

Tentative Rulings

As to Objections: Plaintiff objects to supplemental declarations from defense counsel. The Court would **DENY**. While Plaintiff couches the declarations as presenting new evidence, the Court deems them to be responding to argument from the opposition. (See *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-1538 [evidence that simply responds to an argument from opposition is not new evidence].)

As to the Motion to Quash: The Court would **GRANT**.

As to Sanctions: The Court would **GRANT** Defendant's request for monetary sanctions in the reduced amount of \$2,650, against Plaintiff's counsel only.

Case Summary

This is personal injury litigation. Plaintiff, a minor, alleges that on April 27, 2023, she was waiting at a school bus stop when she was struck by a vehicle driven by Defendant Warren. As such, she filed suit against Defendant Warren and also filed against the County, the State, and the Snowline Joint Unified School District. She initially filed suit on April 29, 2024. Plaintiff filed a First Amended Complaint (FAC) on February 14, 2025, in the light of a demurrer. (Tentative, Feb. 27, 2025 [holding the demurrer moot].) That FAC was subject to a sustained demurrer on July 8, 2025. (Tentative, July 8, 2025.) That ruling allowed thirty days leave to amend. (*Ibid.*)

Relevant here, Plaintiff failed to amend within the allotted timeline, and the County applied *ex parte* on October 23, 2025, for an order dismissing Plaintiff's action for failure to amend. The Court continued the matter to November 5, 2025, to allow further briefing. In the interim Plaintiff attempted to file a Second Amended Complaint (SAC) on October 24, 2025. This filing was filed *beyond* the leave provided by the Court, and the Court continued the hearing on dismissal in order to allow further briefing on whether to provide relief. (Tentative, Nov. 5, 2025.) At that next hearing on January 27, 2026, the Court *again* continued the matter to provide one Plaintiff with a final attempt to support relief. (Tentative, Jan. 27, 2026.) Finally, on February 6, 2026, the Court granted relief; accepted the SAC; and required an Answer to be filed within twenty days. This ruling was expressly contingent on Plaintiff paying reasonable attorneys' fees related to the various hearings related to the motion to dismiss. (Tentative, Feb. 6, 2026.) The parties were ordered to meet and confer on the amount of the fees at issue. A hearing on such fees and costs (compliance with the terms of relief) was set for June 8, 2026.

Analysis

Notably, “[a] presumption exists against deposing opposing counsel that can be rebutted only by meeting a high standard of extremely good cause” (*Riverside Sheriffs' Assn. v. County of Riverside* (2007) 152 Cal.App.4th 414, 424 [internal citations omitted].) In considering whether to allow the examination of opposing counsel, the court considers the following three-prong test: “First, does the proponent have other practicable means to obtain the information? Second, is the information crucial to the preparation of the case? Third, is the information subject to a privilege?” (*Carehouse Convalescent Hospital v. Superior Court* (2006) 143 Cal.App.4th 1558, 1563 [internal citation omitted].)

As to the first prong, Defendant provides the more convincing argument that there are other practical means to obtain the sought information. Plaintiff’s counsel seeks to depose the defense attorneys and paralegals on their time spent on the case. Defendant argues that Plaintiff already has a copy of opposing counsel’s billing records and has the motions and their supporting documents filed in this case on which the lodestar amount is based. (Corzano Decl., ¶¶3-4, Exhs. B-C.) Defendant asserts that comparing the entries to the work is one practical way to determine whether the representations made in the declaration are correct and if the lodestar amount is reasonable. Defendant also notes that Plaintiff’s counsel admitted, during his telephonic conversation with Defendant’s counsel, that “he had not reviewed the billing records that [defense counsel] had sent him and the documents that have been filed in the case in detail; and, if he had to do so, he would rather proceed with filing a brief in opposition to the County’s request for attorney’s fees.” (Corzano Decl., ¶14 [emphasis in original].) Also, during the meet-and-confer process, Defendant’s counsel states that Plaintiff’s counsel was unable to point to a single false statement in the lodestar declaration or billing records. (*Ibid.*) In addition to such comparison of the billing entries to the documents filed, Defendant contends that Plaintiff’s counsel could have met and conferred with opposing counsel to obtain clarification on statements made in the declaration or the individual billing entries that he had concerns with.

As to the second prong, Defendant again provides the more convincing argument that the information is not relevant to the preparation of the case. Defendant argues that deposing opposing counsel about the representations made in their declaration and billing entries is not crucial in assessing the County’s attorneys’ fees and costs.

Notably, Plaintiff’s counsel is in possession of a detailed declaration in support of the County’s attorneys’ fees and costs (Corzano Decl., ¶¶3-4, Exh. B.) By contrast, Plaintiff’s argument that the claimed \$15,770.16 can only be assessed by live testimony is not persuasive. As noted in the opposition, Plaintiff is already raising specific challenges to Defendant’s supporting evidence. The Court then can assess the reasonableness based on such competing points. (*Serrano v. Priest* (1977) 20 Cal.3d 25, 49 [“The ‘experienced trial judge is the best judge of the value of professional services rendered in his court, and while his judgment is of course subject

to review, it will not be disturbed unless the appellate court is convinced that it is clearly wrong.’ [Citations.]”.)

As to the third prong, Plaintiff provides the more convincing argument that the information surrounding the attorneys’ fees and costs is not subject to the attorney-client privilege. Plaintiff argues that Defendant’s counsel waived the privilege when he submitted the declaration and billing records for \$15,770.16, at the behest of the client, respectively acting inconsistent with the intent to maintain privilege as to the aforementioned information. Plaintiff mainly relies on *California-American Water Co.* case for support, which states:

Waiver means ‘the intentional relinquishment or abandonment of a known right.’ And whether there has been waiver is a question of fact. Waiver ‘always rests upon intent.’ The intention may be express, based on the waiving party’s words, or implied, based on conduct that is ‘so inconsistent with an intent to enforce the right as to induce a reasonable belief that such right has been relinquished.’

(*California-American Water Co. v. Marina Coast Water Dist.* (2022) 86 Cal.App.5th 1272, 1292 [internal citations omitted].)

In sum the prongs lean more in favor of the Defendant, as Plaintiff has not show “extremely good cause” for the deposition of Defendant’s attorneys and paralegals. (*Carehouse Convalescent Hospital, supra*, 143 Cal.App.4th 1558, 1562.)

19. *Bank of America, N.A., v. Serrata*, Case No. CIVDS1828385
Motion to Set Aside Dismissal & Entry of Judgment
6/1/26, 8:30 a.m., S-17

The Court would **GRANT** this unopposed motion.

This is a limited civil matter. The submitted declaration supports that the parties entered into a settlement agreement. Plaintiff would dismiss pursuant to Code of Civil Procedure section 664.6, with the Court retaining jurisdiction to enforce the agreement, and certain payments would be make until the debt was paid in full. In the case of default, the parties agreed to judgment in favor of Plaintiff. (Zarco Decl., ¶¶3-4 & Exh. 1.) Movant includes the payment history that shows the cessation of payments. (Zarco Decl., ¶6 & Exh. 2.)
